

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TZ SSE BUYER, LLC, *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED, *Respondents*.

DOCKET NO. 24-08

Served: April 21, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

**INITIAL DECISION DISMISSING SECOND AMENDED COMPLAINT PURSUANT TO
APPROVED CONFIDENTIAL SETTLEMENT AGREEMENT¹**

In accordance with the order served April 1, 2025, granting the Joint Motion for Approval and Confidential Treatment of Settlement and Release filed by Complainant TZ SSE Buyer, LLC, and Respondents Overseas Container Line Limited and OOCL (Europe) Limited, Complainant's Motion to Dismiss the Second Amended Complaint with Prejudice filed April 4, 2025, is granted and the Second Amended Complaint is dismissed with prejudice.

On March 11, 2025, Complainant and Respondents filed the Joint Motion for Approval and Confidential Treatment of Settlement Agreement, which requested that their confidential settlement agreement be approved but proposed an unusual two-step process for the ultimate disposition of the proceeding. Specifically, the parties proposed that the undersigned Administrative Law Judge first approve their confidential settlement agreement, and then later dismiss the proceeding with prejudice upon the filing of a notice of dismissal by Complainant once the agreed upon settlement amount had been paid. Although the undersigned determined that the substantive terms of the settlement agreement and request for confidentiality warranted approval in accordance with applicable law and Commission precedent, it was determined that the two-step disposition proposed by the parties was not appropriate under 46 C.F.R. § 502.72, the applicable regulation governing dismissals.

For this reason, on April 1, 2025, an order was entered approving the substantive terms of the settlement agreement, but denying the request for entry of a dismissal upon the filing of a notice of dismissal by Complainant. Rather than filing a notice of dismissal as proposed, Complainant was directed instead to file a motion for dismissal with prejudice once the agreed

¹ This initial decision will become the decision of the Commission in the absence of review by the Commission. Any party may file exceptions to this decision within twenty-two days of the date of service. 46 C.F.R. § 502.227.

upon settlement amount had been paid. In accordance with the order, on April 4, 2025, Complainant filed the Motion to Dismiss the Second Amended Complaint with Prejudice.

Upon consideration of the motion, the settlement agreement, and the record, and good cause having been stated, it is hereby:

ORDERED that Complainant's Motion to Dismiss the Second Amended Complaint with Prejudice is **GRANTED**. It is

FURTHER ORDERED that the request for dismissal of the Second Amended Complaint with prejudice is **GRANTED**.

Mary A. Hervey -S Digitally signed by Mary A. Hervey -S
Date: 2025.04.21 07:56:49 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge